

Court No. - 33

Case :- WRIT - A No. - 17877 of 2023

Petitioner :- Umesh Chandra Verma

Respondent :- U.P.Power Corporation Ltd.And 3 Others

Counsel for Petitioner :- Manu Mishra

Counsel for Respondent :- Abhishek Srivastava

Hon'ble J.J. Munir,J.

Amongst other matters argued by the learned Counsel for the petitioner it is urged that no witnesses have been examined in support of the charges by the establishment though a major penalty, amongst others, has been imposed. It is also argued that the order of punishment imposes an amalgam of minor and major penalties, which runs contrary to the principle laid down by the Supreme Court in **Union of India and another v. S. C. Parashar, (2006) 3 SCC 167.**

Mr. Abhishek Srivastava, learned Counsel accepts notice on behalf of respondents. He prays for and is granted ten days' time to file a counter affidavit.

Lay as fresh on **20.11.2023.**

Order Date :- 1.11.2023

Vijay

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Hon'ble J.J. Munir,J.

A counter affidavit has been filed today in Court by Mr. Abhishek Srivastava, learned Counsel. It is taken on record. Let it be numbered by the Office.

Parties have exchanged affidavits.

Admit.

Heard forthwith.

Heard Mr. Manu Mishra, learned Counsel for the petitioner and Mr. Abhishek Srivastava, learned Counsel for the respondents.

Judgment reserved.

Order Date :- 20.11.2023

Vijay

Court No. - 7**Reserved****Case :-** WRIT - A No. - 17877 of 2023**Petitioner :-** Umesh Chandra Verma**Respondent :-** U.P.Power Corporation Ltd.And 3 Others**Counsel for Petitioner :-** Manu Mishra**Counsel for Respondent :-** Abhishek Srivastava**Hon'ble J.J. Munir,J.**

1. This writ petition is directed against an order of the Chairman, Uttar Pradesh Power Corporation Limited, Lucknow (for short, 'the Corporation') dated 18.05.2022, whereby the petitioner, after holding a disciplinary inquiry, has been awarded the punishment of reduction by one step permanently in the present basic pay as per the petitioner's pay matrix, besides a censure. The petitioner further challenges the order made by the Board of Directors of the Corporation dated 14.11.2022, dismissing the petitioner's appeal against the last mentioned order passed by the Disciplinary Authority.

2. The facts giving rise to this petition are:

A certain Dr. Sanjay Bhargava manages a hospital under the name and style of M/s. Varuna Trauma and Burn Centre, located at the Quarsi Chauraha, Aligarh. The premises of the hospital are situate on both sides of a road that meets a dead end, passing between the premises. The first block of the hospital is an old construction whereas the second block, constructed much later, is situate on the other side of the road. The road, according to the petitioner, is not used as a public road for the passage of traffic. The first block of the hospital was sanctioned an electricity connection with a load of 55 kilowatts (KW). It was energized according to the procedure prescribed under the Uttar Pradesh Electricity Supply Code,

2005. There was a later demand by the consumer to enhance the load to 120 KW. The enhancement was needed to energize the second block situate on the other side of the road. An application for the purposes was submitted by the proprietor of the hospital on 14.10.2016, addressed to the Executive Engineer, Electricity Distribution Division-II, Aligarh. This application was sanctioned by the petitioner, who held the office of the Executive Engineer as aforesaid. The Assistant Engineer concerned, posted at the Sub-divisional Office, submitted a technical feasibility report dated 04.11.2016. The technical feasibility report was submitted to the petitioner and opined that the enhancement load would be utilized by the consumer for energising the other block of the same hospital, located on the other side of the road/lane. The enhancement of load by adding another 65 KW to the existing 55 KW, would require a change in something described as 'CT & PT' as also in the capacity of the transformer from 100 KVA to 250 KVA. After receipt of the technical feasibility report, the petitioner *vide* his memo dated 11.11.2016 intimated the consumer that he would be required to deposit a sum of Rs.5,87,345/- towards enhancement of load. The consumer deposited the advised sum of money. Appropriate steps were then taken to energize the second block of the hospital. The load was enhanced from 55 KW to 120 KW and a completion certificate was issued.

3. On the 8th of November, 2021, a vigilance team of the Corporation inspected the premises of the hospital and found that the consumer was involved in unauthorized use of electricity connection. An inspection report dated 26.11.2021 was submitted to the competent Authority. The petitioner says that he was surprised to receive a charge-sheet dated 18.12.2021, issued by an Inquiry Committee, appointed by the

Corporation. The three charges against the petitioner and the documents by which it was sought to be proved, extracted from the charge-sheet, read:

"आरोप सं० 1:

उपखण्ड अधिकारी, विद्युत नगरीय वितरण उपखण्ड – प्रथम, क्वार्सी, अलीगढ़ के कार्यालय पत्रांक 2553 दिनांक 04.11.2016 के अन्तर्गत प्रेषित तकनीकी सम्भाव्य आख्या (TFR) प्राप्त हो जाने पर आपका उत्तरदायित्व था कि आप अतिरिक्त भार वृद्धि स्वीकृति आदेश कार्यालय ज्ञाप सं० 5028 दिनांक 19.10.2016 को निरस्त कर उपभोक्ता को सड़क पार स्थित द्वितीय बिल्डिंग (B) में विद्युत प्रदान किये जाने हेतु नया आवेदन प्रस्तुत किये जाने हेतु निर्देशित करते अतएव आपको विभागीय नियमों का अनुपालन न करने, तकनीकी सम्भाव्य आख्या के अनुसार कार्यवाही न करने, कार्यालय ज्ञाप सं० 5028 दिनांक 19.10.2016 को निरस्त न कराकर नियम विरुद्ध भार वृद्धि के लिए अनुबन्ध करने एवं गम्भीर कदाचरण के आरोपों से आरोपित किया जाता है।

आरोप सं० 2:

उपखण्ड अधिकारी, विद्युत नगरीय वितरण उपखण्ड – प्रथम, क्वार्सी, अलीगढ़ के कार्यालय पत्रांक 2553 दिनांक 04.11.2016 के द्वारा प्रेषित तकनीकी सम्भाव्य आख्या (TFR) के अवलोकन करने के उपरान्त आपके द्वारा तत्कालीन अनुबन्ध लिपिक श्री प्रदीप कुमार चौहान को आदेशित किया कि "RIO to SDO-II for Correction"। जिससे यह प्रमाणित है कि संयोजन सं० 5311111111 की भार वृद्धि कर प्रथम बिल्डिंग (A) से सड़क पार स्थित द्वितीय बिल्डिंग (B) में विद्युत का प्रयोग कराया जाना विभागीय नियमों के विपरीत है। तथापि आपके द्वारा उपभोक्ता से दुरभि सन्धि कर एवं अनुबन्ध लिपिक श्री प्रदीप कुमार चौहान से सांठ-गांठ कर अतिरिक्त भार वृद्धि हेतु अनुबन्ध हस्ताक्षरित किये गये, जिससे विभागीय विनियमों का घोर उल्लंघन करते हुए आपके द्वारा उपभोक्ता को विद्युत के अप्राधिकृत प्रयोग करने के लिए अनुमन्य कर दिया गया।

अतएव आपको विभागीय विनियमों का घोर उल्लंघन कर अनुबन्ध करने, उपभोक्ता से दुरभि सन्धि कर विभागीय विनियमों के विपरीत अनुबन्ध करने एवं गम्भीर कदाचरण के आरोपों से आरोपित किया जाता है।

आरोप सं० 3:

आपके द्वारा उपभोक्ता से दुरभि सन्धि कर एवं अनुबन्ध लिपिक श्री प्रदीप कुमार चौहान से सांठ-गांठ करते हुए अतिरिक्त भार वृद्धि हेतु अनुबन्ध हस्ताक्षरित करने के उपरान्त दिनांक 08.11.2021 को डिस्काम मुख्यालय की रेड टीम द्वारा चैकिंग रिपोर्ट संख्या 038/1782 दिनांक 08.11.2021 से उपभोक्ता द्वारा विद्युत अप्राधिकृत प्रयोग पाये जाने पर अतिरिक्त राजस्व निर्धारण की संस्तुति के अनुसार रु० 2,03,06,995.00 का अतिरिक्त राजस्व निर्धारण हुआ, जिसमें रु० 2,00,06,995.00 अभी भी वसूली हेतु विलम्बित है।

अतएव आपको विभागीय विनियमों का घोर उल्लंघन करने, उपभोक्ता से दुरभि सन्धि कर विभागीय विनियमों के विपरीत अनुबन्ध करने एवं गम्भीर कदाचरण के आरोपों से आरोपित किया जाता है।

उपरोक्त आरोप हेतु निम्नलिखित साक्ष्य प्रस्तावित हैं-

1. श्री संजय भार्गव पुत्र श्री दीनानाथ भार्गव द्वारा अपने अस्पताल मै० वरुण ट्रामा एवं बर्न सेन्टर रामघाट रोड, अलीगढ़ द्वारा अपने संयोजन आई 0 डी0 सं0 5311111111 के भार वृद्धि के लिए प्रेषित आवेदन।
 2. भारवृद्धि के लिए प्रक्रमण शुल्क के लिए भुगतान की गई धनराशि की रसीद सं0 500788/44 दिनांक 18.10.2016।
 3. अतिरिक्त भार स्वीकृति आदेश सं0 5028 दिनांक 19.10.2016।
 4. उपखण्ड अधिकारी के कार्यालय पत्रांक 2553 दिनांक 04.11.2016 के अन्तर्गत तकनीकी सम्भाव्य आख्या एवं उक्त पर अधिशासी अभियन्ता द्वारा पृष्ठांकित आदेश दिनांक 07.11.2016।
 5. कार्यालय ज्ञाप सं0 5401 दिनांक 11.11.2016 के अन्तर्गत निर्गत नियम एवं शर्तें।
 6. उपभोक्ता द्वारा प्राकलन की धनराशि के भुगतान की रसीद सं0 580733/02 दिनांक 11.11.2016।
 7. उपभोक्ता द्वारा किया गया अनुबन्ध दिनांक 12.11.2016।
 8. लाईन आदेश सं0 5410 दिनांक 14.11.2016।
 9. आदेश सं0 1311 दिनांक 15.03.2017।
 10. सीलिंग सर्टिफिकेट सं0 401 / 09 दिनांक 25.06.2017।
 11. चैकिंग रिपोर्ट सं0 038 / 1782 दिनांक 08.11.2021।
 12. कार्यालय पत्रांक 3483 दिनांक 26.11.2021।
 13. उ 0 प्र 0 सरकारी कर्मचारी आचरण नियमावली 1956। (प्रकाशित सामग्री)
- (प्रस्तावित साक्ष्य क्रमांक 01 से 12 संलग्न किया जा रहा है जबकि साक्ष्य क्रमांक 13 प्रकाशित अभिलेख है जिसे आप अपने स्तर से प्राप्त कर ले)।"*

4. The petitioner submitted a detailed reply to the charge-sheet denying all the charges and explaining his actions consistent with his innocence. The reply that was put in is one dated 11.01.2022. The Inquiry Committee submitted the report dated 09.02.2022, holding the petitioner guilty partially on all the three charges. A show cause notice dated 15.03.2022 was issued to the petitioner by the Chairman of the Corporation, calling upon the petitioner to submit his reply to the inquiry report, a copy of which was enclosed. The petitioner submitted

a detailed reply dated 21.03.2022, refuting the allegations and substantiating his defence. The Chairman of the Corporation by means of the impugned order dated 18.05.2022 proceeded to award the petitioner the punishment of reduction by one step permanently in the present basic pay, besides the award of a censure entry. The petitioner appealed the decision to the Board of Directors of the Corporation, who dismissed his appeal *vide* order dated 14.11.2022.

5. Aggrieved, the present writ petition has been instituted.

6. Heard Mr. Manu Mishra, learned Counsel for the petitioner and Mr. Abhishek Srivastava, learned Counsel for the respondents.

7. This Court does not propose to go into the merits of the charges, but would confine to the validity and fairness of the procedure, that has led to the imposition of the impugned punishment. There is one more aspect, which this Court wishes to comment upon and that is the kind or the type of punishment awarded.

8. The parties are *ad idem* that out of the two punishments awarded, the second penalty is major in character. It is the petitioner's case that no witness was produced and examined on behalf of the establishment before the Inquiry Committee nor any oral inquiry held as contemplated under Regulation 7 of the Uttar Pradesh Power Corporation Limited Employees (Discipline and Appeal) Regulations, 2020 (for short, 'the Regulations'). It is argued that in a case where a major penalty is awarded, it is imperative, as a principle of salutary procedure for the establishment, to produce evidence in the first instance, both documentary and oral, and prove the charges against the delinquent. It is also necessary in case of award of a major

penalty that witnesses be produced, besides documents. After the employers have discharged their burden by producing evidence, the delinquent is entitled to cross-examine the witnesses. In the next lap of proceedings, the delinquent has to be given opportunity to produce his evidence, both documentary and oral.

9. The submission of the learned Counsel for the petitioner is that this procedure has not at all been followed and without examining any witnesses on behalf of the establishment, the Inquiry Committee have proceeded to draw their conclusions of guilt, albeit partial, against the petitioner on all the three charges by perusing the charge-sheet and the petitioner's reply. The relevant averments in this regard find place in paragraph Nos.17, 18 and 19 of the writ petition. Advancing his criticism of the impugned orders further, learned Counsel for the petitioner further argues that the punishment of reduction by one step permanently in the present basic pay does not find place amongst the penalties enumerated in Regulation 3 of the Regulations. He submits that since the penalty awarded is not enumerated under the Regulations, it is without the authority of law.

10. In the counter affidavit filed on behalf of all the respondents jointly, it is not disputed for a fact that no witness was examined in support of the charge-sheet. It is averred in paragraph No.7. iii. that the material that was placed on record did not leave the petitioner to dispute the genuineness of any of the documents. It is also said that under Regulation 7(7), if no one is named as a witness in the charge-sheet, the respondents are not obliged to produce witnesses even in case of an inquiry that may lead to the imposition of a major penalty. It is said that no prejudice has been caused to the petitioner

because he was given full opportunity of oral hearing along with the option to examine any witness or dispute the admissibility of any document.

11. In paragraph No.7. vi., after admitting the fact that no witness was examined by the Corporation to prove the charges during the departmental inquiry in the present case, the Corporation after an initial stout stand in the counter affidavit developed cold feet, perhaps mindful of the folly in their stand and have averred as follows:

"Further to remove all these anomalies an Office Memorandum dated 14.8.23 has been issued wherein it has been directed to all the authorities of the Corporation and the discoms inquiry that they should strictly adhere to the provisions of Rule 7 of the Regulations 2020 and during the departmental inquiry they must first examine the officers on behalf of the Corporation to prove the charges and only thereafter they should provide opportunity to the employees to either cross examine them or to produce any witness on behalf of his defense."

12. In the last mentioned averment in paragraph No.7.vi. of the counter affidavit, there is an acknowledgment of the principle that in all departmental proceedings before the Inquiry Committee or the Officer, charges set out in the charge-sheet cannot be taken by the Inquiry Committee/ Officer to be proof of themselves. These have to be proved by the establishment in the first instance by producing evidence, both documentary and oral. The salutary principles applicable to the holding of a valid departmental inquiry, part of disciplinary proceedings, that may lead to the imposition of a major penalty, is that the Inquiry Committee/ Officer must convene themselves/ itself as an impartial arbiter, distanced from the establishment, even if the Inquiry Committee/ Officer are employees of the same establishment. The establishment must then come forward and

establish the charge/ charges in the first instance by producing evidence, both documentary and oral. It is also imperative by salutary principle that in a case where a major penalty is likely, witnesses be examined on behalf of the establishment to prove the charge. The stand by the respondents elsewhere that the petitioner has not disputed the documents is besides the point.

13. It is after all not the respondents case that the petitioner has admitted the documents. It is not a case where endorsement of admission has been made on the documents or in the reply to the charge-sheet, the cited documents have been admitted. The entire charge together with the evidence has been disputed by the petitioner. In the circumstances, the establishment/ respondents are not relieved of their burden in any manner of proving the charges in the first instance by producing documentary evidence through a Presenting Officer before the Inquiry Tribunal, introducing it and explaining its bearing on the relevant charges. The documents or other facts would further have to be proved by examining relevant witnesses on behalf of the establishment. The establishment witnesses would have to face cross-examination by the delinquent. After this stage was over, the petitioner would have to be given opportunity to produce his own evidence, both documentary and oral. Of course, any witness that the petitioner would produce has to be offered for cross-examination to the establishment. Here, the Inquiry Committee did not hold any hearing before them, where evidence was led on behalf of the establishment in the first instance. They gleaned through the charge-sheet and the reply, considering the documents as evidence duly proved and drew their own conclusions, as if they were inquiring into the matter at the stage of a preliminary inquiry. There was no formal proceeding.

The law in this regard as to what are the salutary principles to hold a departmental inquiry and what are the obligations of the establishment, that we have enumerated above, is well settled. In this connection, reference may be made to the decisions of the Supreme Court in **State of Uttar Pradesh and others v. Saroj Kumar Sinha, (2010) 2 SCC 772, Roop Singh Negi v. Punjab National Bank and others, (2009) 2 SCC 570, State of Uttaranchal and others v. Kharak Singh, (2008) 8 SCC 236** and the Bench decisions of this Court in **State of U.P. and another v. Kishori Lal and another, 2018 (9) ADJ 397 (DB) (LB), Smt. Karuna Jaiswal v. State of U.P., 2018 (9) ADJ 107 (DB)(LB)** and **State of U.P. v. Aditya Prasad Srivastava and another, 2017 (2) ADJ 554 (DB)(LB)**.

14. This Court also thinks that one of the petitioner's contentions that the punishment of reduction by one step permanently in the present basic pay is a penalty not enumerated in Regulation 3 of the Regulations, and, therefore, not legal, is required to be examined.

15. This point was not argued with conviction by both parties, but sufficiently raised to require scrutiny. Since this Court proposes to quash the order of punishment and send back the matter to the respondents with liberty to proceed *de novo*, the respondents would also look into the aforesaid position if the punishment awarded to the petitioner is one of the enumerated punishments under Regulation 3 of the Regulations. If it is not, certainly it could not have been awarded and cannot be awarded.

16. This Court is also mindful of the fact that the petitioner has retired from service, and, therefore, if at all the respondents elect to pursue fresh proceedings from the stage of charge-

sheet, they must conclude those proceedings within three months of the receipt of a copy of this order.

17. It goes without saying that the liberty proposed to be granted to the respondents to proceed against the petitioner afresh, would be there if under the rules applicable to the respondents, it is permissible to continue disciplinary proceedings against a retired employee/ officer, commenced before retirement.

18. In the result, this petition succeeds and is **allowed**. The impugned order dated 18.05.2022 passed by the Chairman Corporation and the appellate order dated 14.11.2022 passed by the Board of the Corporation are hereby **quashed**. It would be open to the respondents to proceed afresh, if they so elect, against the petitioner, from the stage of charge-sheet, provided under the rules applicable to them, it is permissible to continue disciplinary proceedings against a retired employee/ officer commenced before retirement. It is further ordered that in the event, the respondents are competent to take proceedings afresh and also elect to do so, no punishment higher than that awarded by the orders impugned and since quashed by this judgment, shall be awarded in any event.

19. There shall be no order as to costs.

Order Date :- 11.03.2024
Anoop

(J.J. Munir, J.)